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Tel No: 22818456

Fax No: 22304565

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BY HAND AND ELECTRONIC MAIL

EMC GIORGALLOS HOMECARE SYSTEMS LTD

DECISION

Subject: Complaint regarding unsolicited commercial promotion call

I refer to the complaint submitted to my Office regarding the above subject and in continuation of our correspondence, I inform you that we have examined the complaint and I present to you the following:

1. Facts / Positions of the Parties

1.1. The holder of mobile phone number XXXX (hereinafter the "complainant") submitted a complaint on 7/4/2023 regarding receiving an unsolicited commercial promotion call from the company EMC GIORGALLOS HOMECARE SYSTEMS LTD (hereinafter the "Respondent").

1.2. The following claims are recorded in the complaint:

1.2.1. The complainant received a call from the phone number 22010611 on 6/4/2023.

1.2.2. At the beginning of the call, it was mentioned that the complainant won a free carpet and mattress cleaning, after a random selection, completely free of charge and without any obligation at the end of the cleaning. The complainant then asked where the call was coming from, and the person who called him said it was from the company GIORGALLOS.

1.2.3. The complainant, in order to buy time and search for information online about the company, asked how the cleaning could be scheduled. He was then asked in which area he resides and what time would be convenient for him to arrange the appointment. The complainant then asked the Respondent how they obtained his number, and the person who called him said that they use a system that randomly selects numbers. After this, the complainant stated that he was not interested and hung up the phone.

1.2.4. The complainant asserts that he has no prior relationship with the Respondent and that he has never given his consent to receive commercial promotion calls.

1.2.5. In a letter dated 12/5/2023, I informed the Respondent regarding the said complaint, brought to their attention the relevant provisions of the legislation, as the complainant's phone number constitutes "personal data," and I requested them to send me their positions/views on the complainant's claims, the manner in which the complainant's phone number was obtained, and the legal basis used for making the said call, in accordance with the provisions of the General Data Protection Regulation (EU) 2016/679.

1.2.6. In their letter, the Respondent informed me that the said call was informational in nature as it aimed solely to notify the complainant of the provision of a free carpet cleaning without any obligation and/or cost, and in no case did it constitute or should it be construed as a promotion of any products or services. This action was carried out as part of the development of their corporate image, with a view to their social presence within a broader context and parameters.

1.2.7. Additionally, the Respondent noted that the complainant may have been referred to the company by a third party, without any eligibility criteria, and contacted him in good faith and selflessness. The complainant unexpectedly interrupted his conversation with the employee, and as a result, he was not given the opportunity to be fully informed about the above as well as about his right to object.

1.2.8. The Respondent committed to operate on the basis of strict compliance with applicable laws and

regulations and to enhance their internal training seminars (specifically on issues related to personal data, directly or indirectly), as well as their mechanisms in order to avoid similar incidents in the future.

2. Legal Basis

2.1. According to Article 4(1) of Regulation (EU) 2016/679, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

2.2. In Article 4(2) of Regulation (EU) 2016/679, processing is defined as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

2.3. Furthermore, in Article 4(7) of Regulation (EU) 2016/679, the data controller is defined as "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

2.4. Based on Article 5(1)(f) of Regulation (EU) 2016/679, personal data must be "processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures ('integrity and confidentiality')."

2.5. Article 5(2) of Regulation (EU) 2016/679 states that "The controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ('accountability')."

2.6. Article 6(1) of Regulation (EU) 2016/679 provides that:

"Processing shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes,
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract,
- c) processing is necessary for compliance with a legal obligation to which the controller is subject,
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person,
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller,
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child. The element (f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

2.7. Based on Recital 47 of the preamble of Regulation (EU) 2016/679, the processing of personal data for direct marketing purposes may be regarded as carried out for a legitimate interest. Such legitimate interest could exist, for example, when there is a relevant and appropriate relationship between the data subject and the controller, such as when the data subject is a customer of the controller or is in the service of the controller.

2.8. Based on Recital 70 of the preamble of Regulation (EU) 2016/679, when personal data are processed for the purposes of direct marketing, the data subject should have the right to object to such processing, including profiling to the extent that it is related to such direct marketing, whether it is initial

or further processing, at any time and free of charge. This right should be explicitly brought to the attention of the data subject and presented clearly and separately from any other information.

2.9. Article 21 of Regulation (EU) 2016/679 states that:

"1. The data subject shall have the right to object, at any time and on grounds relating to his or her particular situation, to processing of personal data concerning him or her which is based on Article 6(1)(e) or (f), including profiling."

****Profile based on the aforementioned provisions.****

The data controller no longer processes personal data unless the data controller demonstrates compelling and legitimate reasons for the processing that override the interests, rights, and freedoms of the data subject or for the establishment, exercise, or defense of legal claims.

2. If personal data are processed for the purposes of direct marketing, the data subject has the right to object at any time to the processing of personal data concerning them for such marketing, including profiling, insofar as it is related to such direct marketing.

3. When data subjects object to processing for the purposes of direct marketing, personal data shall no longer be processed for those purposes...

****2.10.**** Under Article 58(2) of Regulation (EU) 2016/679, each supervisory authority has all of the following corrective powers:

****a)**** to issue warnings to the data controller or the processor that intended processing operations are likely to infringe provisions of this Regulation,

****b)**** to issue reprimands to the data controller or the processor when processing operations have infringed provisions of this Regulation,

****c)**** to order the data controller or the processor to comply with the requests of the data subject to exercise their rights under this Regulation,

****d)**** to order the data controller or the processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a specified period,

****e)**** to order the data controller to notify the personal data breach to the data subject,

****f)**** to impose a temporary or definitive limitation, including a ban on processing,

****g)**** to order the rectification or erasure of personal data or the restriction of processing pursuant to Articles 16, 17, and 18 and to order the communication of such actions to recipients to whom the personal data have been disclosed pursuant to Article 17(2) and Article 19,

****h)**** to withdraw a certification or to order the certification body to withdraw a certificate issued pursuant to Articles 42 and 43 or to order the certification body not to issue a certification, if the certification requirements are not met or are no longer met,

****i)**** to impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

****j)**** to order the suspension of the flow of data to a recipient in a third country or to an international organization.

****3. Reasoning****

****3.1.**** In the incident under investigation, the complainant acts as the data controller, as they have determined the purpose of the processing. This purpose is achieved through a phone call to the data subjects.

****3.2.**** Contrary to the complainant's assertion that the call in question was informative as it aimed solely to inform the complainant of the provision of free cleaning services, my position is that the call was made for the purposes of direct marketing.

****3.3.**** The legal basis that may be used for the purposes of direct marketing is either the consent of the data subject (Article 6(1)(a) of the Regulation) or the legitimate interest of the data controller (Article 6(1)(f) of the Regulation).

****3.4.**** Furthermore, the complainant's position that the company proceeded with this promotional action in accordance with the provisions and in compliance with the Regulation is unfounded, as the

company did not have the prior consent of the complainant for the processing of their data.

****3.5.**** Based on my guidelines for the Protection of Personal Data for sending messages and making calls of a political nature / promoting candidacies, "Political communication is also not permitted to random telephone numbers (e.g., those generated by a computer program). Even if the data controller does not retain information about the holders of the numbers, the telephone numbers constitute personal data, as the holder can easily be identified." The same prohibition applies correspondingly to cases of calls to random numbers for the purposes of direct marketing.

3.6. As a result of the above, I find that there has been a violation of Article 6 of Regulation (EU) 2016/679, due to the fact that the entity against which the complaint was made processed personal data of the complainant without their prior consent.

4. Conclusion

4.1. In light of the above, as well as the evidence I have before me, the following factors were taken into consideration during the examination of the complaint:

- a) The absence of written consent for receiving a promotional call,
- b) The failure to provide the opportunity to object to the promotional call,
- c) The commitment of the entity against which the complaint was made to comply henceforth with the provisions of the Regulation,
- d) The cooperation of the entity against which the complaint was made with my Office, and
- e) The corrective and organizational measures that the entity against which the complaint was made will take to avoid similar incidents in the future.

4.2. By evaluating the aggravating (a-b) and mitigating (c-e) factors that were present in relation to the incident and based on the powers conferred upon me by Article 58(2)(a) of Regulation (EU) 2016/679, I have decided to issue a Warning to the company EMC Giorgallos Homecare Systems Ltd, to ensure that a similar incident does not occur in the future.

4.3. In the event of a recurrence of a similar incident, it will be dealt with more strictly.

Eirini Loizidou Nicolaidou

Commissioner for the Protection of Personal Data